

Line 9

Case Name: *Argent Investments LLC v. Ye Rang Choi, et al.*
And Related Cross-Action

Case No.: 25CV468257

See **ORDER** above (Cross-Defendants' Demurrer to the First Amended Cross-Complaint is **STAYED** pending completion of appeal).

Date: June 24, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 10

Case Name: *JPMorgan Chase Bank, N.A. v. Don Nguyen*

Case No.: 25CV476443

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Don Nguyen (“Defendant”) moves to quash service of the Summons on the grounds that service of the summons was not properly effected upon Defendant, and therefore the Court lacks personal jurisdiction over Defendant. Notice of Motion (the “Motion”) at p. 2¹¹ (filed: Oct. 29, 2025).

The Motion came on for hearing on June 24, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Plaintiff JPMorgan Chase Bank, N.A. (“Plaintiff”) brings this civil action against defendant Don Nguyen (“Defendant”). On September 29, 2025, Plaintiff filed a Complaint against Defendant seeking damages of \$103,717.99 for unpaid payments on a credit account. On October 6, 2025, Plaintiff filed a Proof of Service of Summons of the Complaint.

Defendant’s Motion to quash service of Summons, filed on October 29, 2025, is now before the court.

On June 8, 2026, Plaintiff timely filed an Opposition to the Motion.

Legal Standard on Motion to Quash for Service of Summons

Code of Civil Procedure Section 418.10, subdivision (a)(1) authorizes Defendant to file a motion to quash service of Summons “on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10, subd. (a)(1).) “[A] motion to quash under section 418.10, subdivision (a)(1) is a limited procedural tool to contest personal jurisdiction over the defendant where the statutory requirements for service of process are not fulfilled.” (*Stancil v. Superior Court* (2021) 11 Cal.5th 381, 390.) A registered process server’s declaration of service creates a rebuttable presumption that service was proper.

¹¹ The Court notes that the Motion filed by this pro se Defendant was not filed on proper pleading paper and does not contain line numbers, so the Court can cite only to page numbers of Defendant’s Motion papers here.